ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO: 199813
NAME: Tod C. Gurney, Esq.
FIRM NAME: GARCIA & GURNEY, ALC
STREET ADDRESS: 6600 Koll Center Parkway, Suite 200
CITY: Pleasanton STATE: CA ZIP CODE: 94566
TELEPHONE NO.: (925) 468-0400 FAX NO.: (925) 468-0276
E-MAIL ADDRESS: tgurney@garciagurney.com,
ATTORNEY FOR (*Name*): Defendant The RK Logistics Group, Inc.

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF Alameda
STREET ADDRESS: 1225 Fallon Street
MAILING ADDRESS: 1225 Fallon Street
CITY AND ZIP CODE: Oakland, CA 94612
BRANCH NAME: Rene C. Davidson Courthouse

PLAINTIFF/PETITIONER: Brendan Ngehsi Newanforbi
DEFENDANT/RESPONDENT: Randstad U.S., LLC, et al.

DECLARATION OF DEMURRING OR MOVING PARTY IN SUPPORT OF AUTOMATIC EXTENSION

CASE NUMBER: 26CV199902

1. (*Name of party*): Defendant The RK Logistics Group, Inc. was served with

[x] a complaint [ ] an amended complaint [ ] a cross-complaint
[ ] an answer [ ] other *(specify):*
in the above-titled action.

2. For a demurrer or motion to strike, a responsive pleading is due on *(date):* 9/14/2026

DECLARATION

I intend to file a demurrer, motion to strike, or motion for judgment on the pleadings in this action. Before I can do so, I am required to meet and confer with the party who filed the pleading that I am responding to at least five days before the date when the responsive pleading is due (if I am filing a demurrer or motion to strike) and at least five days before the last day a motion for judgment on the pleadings may be filed (if I am filing a motion for judgment on the pleadings). We have not been able to meet and confer. I have not previously requested an automatic extension of time. Therefore, on timely filing and serving a declaration that meets the requirements of Code of Civil Procedure sections 430.41, 435.5, or 439, I am entitled to an automatic 30-day extension of time within which to file a responsive pleading or motion for judgment on the pleadings.

I made a good faith attempt to meet and confer with the party who filed the pleading at least five days before the date the responsive pleading was due (if I am filing a demurrer or motion to strike) and at least five days before the last day a motion for judgment on the pleadings may be filed (if I am filing a motion for judgment on the pleadings). I was unable to meet with that party because *(the reasons why the parties could not meet and confer are stated):*

[x] *below* [ ] *on form MC-031, Attached Declaration*

On September 9, 2026, I emailed Plaintiff informing him that my firm has just been retained by Defendant and that upon my initial review of the Complaint, there appeared to be several pleading deficiencies contained therein. I also requested a 15-day extension of time to respond to the Complaint so that the parties could meet and confer regarding those issues. Plaintiff responded to me the next day and denied my request for an extension of time to respond to the Complaint. Since being retained, my firm has not had sufficient time to meet and confer with Plaintiff.

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: September 14, 2026

Tod C. Gurney
(NAME OF PARTY OR ATTORNEY FOR PARTY)

Tod C. Gurney
(SIGNATURE OF PARTY OR ATTORNEY FOR PARTY)

Form Approved for Optional Use
Judicial Council of California
CIV-141 [Rev. January 1, 2019]

Code of Civil Procedure, §§ 430.41, 435.5, 439
www.courts.ca.gov

PROOF OF SERVICE

I am over the age of 18 years and not a party to this action. My business address is 6600 Koll Center Parkway, Suite 200, Pleasanton, California, 94566, which is located in the county where the service described took place. On September 14, 2026, at my place of business at Pleasanton, California, I caused to be served the following document(s):

1. **Declaration of Demurring or Moving Party in Support of Automatic Extension**

in the manner indicated below on the following party:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
bnn.cdl@gmail.com
Plaintiff in Pro Per

Chad Williams
KABAT CHAPMAN & OZMER LLP
1150 Spring Street NW
Suite 800
Atlanta, GA 30309
CWilliams@kcozlaw.com
Attorney for Defendant Randstad US, LLC

☐ **BY MAIL:** I caused the foregoing document(s) to be served by placing the envelope for collection and mailing on the date shown below to the address referenced above following our ordinary business practices. I am readily familiar with this business's practice for collection and processing of correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service in a sealed envelope with postage fully prepaid. I am employed in the county where the mailing occurred. The envelope or package was placed in the mail at Pleasanton, California. ☐ **via CERTIFIED MAIL, return receipt requested**

☐ **BY OVERNIGHT DELIVERY**: I caused the foregoing document(s) to be placed in an envelope addressed as shown hereinabove for collection by an agent authorized to collect documents for processing for overnight delivery.

☒ **BY EMAIL DELIVERY**: I caused the foregoing document(s) to be delivered by email to the addressee(s) shown hereinabove.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Pleasanton, California, on September 14, 2026.

Karen Tai

Karen Tai